

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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KIMBERLY GORDON,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:

POLICE OFFICER MARISOL TORRES, Tax #952298
and SERGEANT GOLDENBERG, Tax #927757,

Location of Incident

Defendants.

Plaintiff designates Queens
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 13, 2016

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER MARISOL TORRES, Tax #952298, 102nd Precinct, 8734 118th
Street, Richmond Hill, NY 11418
SERGEANT GOLDENBERG, Tax #927757, 102nd Precinct, 8734 118th Street,
Richmond Hill, NY 11418

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

KIMBERLY GORDON,

Plaintiff,

-against-

POLICE OFFICER MARISOL TORRES, Tax #952298
and SERGEANT GOLDENBERG, Tax #927757,

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

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Plaintiff, KIMBERLY GORDON, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about December 12, 2013 at approximately 9:00 a.m., plaintiff Kimberly Gordon, was falsely arrested, falsely imprisoned and unlawfully seized and detained by the individually named defendant New York City police officers in the vicinity of 81-17 102nd Road, Ozone Park, New York. Furthermore, the individually named defendant police officers negligently inflicted emotional distress upon plaintiff. Several defendant police officers were present when plaintiff was falsely arrested, observed police officers violate plaintiff's Constitutional rights, but failed to intervene to prevent their fellow officers from continuing to violate plaintiff's rights. Plaintiff was deprived of her Constitutional and common law rights when the individually named defendant police officers falsely arrested, imprisoned, denied the right to a fair trial, and negligently inflicted emotional distress upon plaintiff in violation of the Fourth, and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff KIMBERLY GORDON is a resident of Queens County, State of New York.

3. POLICE OFFICER MARISOL TORRES, Tax #952298, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER MARISOL TORRES, Tax #952298, is and was at all times relevant herein, assigned to the 102nd Precinct.

5. POLICE OFFICER MARISOL TORRES, Tax #952298 is being sued in her individual and official capacities.

6. SERGEANT GOLDENBERG, Tax #927757, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT GOLDENBERG, Tax #927757, is and was at all times relevant herein, assigned to the 102nd Precinct.

8. SERGEANT GOLDENBERG, Tax #927757 is being sued in his individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

14. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

16. THE CITY OF NEW YORK held a 50(H) hearing examination of the Plaintiff on July 29, 2014.

STATEMENT OF FACTS

17. Plaintiff Kimberly Gordon and her three (3) children, all African-Americans, lawfully moved into the third floor of a private house located at 81-17 102nd Road, Ozone Park, New York, in September 2013.

18. Sofia Ahmed, a female not of African-American descent, was the owner and landlord of the home where plaintiff and her children moved, and she lived on the first floor of the private home.

19. A female tenant also lived on the second floor of the private home where plaintiff moved.

20. Prior to moving to her new home in September 2013, plaintiff was unaware of disputes and/or problems that previous tenants had with Sofia Ahmed.

21. However, shortly after moving into her new home, plaintiff learned that her landlord, Sofia Ahmed, routinely cut off her tenants hot water and electricity without any legal reason and routinely threatened tenants in the past, often resulting in complaints being made to 911, NYPD officers at the 102nd precinct, and 311.

22. The police officers assigned to the 102nd precinct as Patrol Officers were aware that many complaints were filed against Ms. Ahmed as a result of her temper and routine threats against the tenants in her building. In fact, many of the officers at the 102nd precinct had responded to Ms. Ahmed's house because of said complaints against Ms. Ahmed.

23. Plaintiff made an effort not to get into any disputes with the landlord after she learned about the landlord's history with tenants.

24. On December 13, 2013, at approximately 8:30 a.m., plaintiff's vehicle was lawfully parked on the street near her home and was not in any way obstructing access to the driveway or garage that her landlord, Sofia Ahmed, used and was attached to 81-17 102nd Road, Ozone Park, New York.

25. However, as she had done many times with other tenants, at approximately 8:30 a.m. on December 13, 2013, Sofia Ahmed became abusive toward plaintiff and without

cause began to argue with plaintiff, whom she sent a text message demanding that plaintiff move her vehicle from where it was parked or else she would have it towed.

26. Additionally, plaintiff received several additional text messages from the landlord that plaintiff perceived as racially charged and threatening, including one text that contained accusations that the landlord was “sick of [plaintiff’s] ghettoness and that [plaintiff] belong (*sic*) in a shelter not in [her] home.”

27. Although plaintiff’s vehicle was legally parked in a public parking spot on the street and was not blocking the entrance to her landlord’s driveway, plaintiff did not want to engage or argue with landlord, who appeared to be emotionally unstable. Therefore, upon receiving the text message, plaintiff exited her apartment, and moved her vehicle to another lawful parking spot.

28. On her way outside, plaintiff saw Ms. Ahmed and the Ms. Ahmed appeared to plaintiff to be angry, irrational, irate and unstable.

29. Plaintiff was so frightened by the text messages sent to her by the Ms. Ahmed, combined with the landlord’s demeanor, affect, body language, and behavior when she saw her, that upon entering plaintiff’s vehicle plaintiff called 911 to report Ms. Ahmed’s behavior and to request police assistance in dealing with the landlord .

30. Shortly thereafter, the defendant police officers arrived at 81-17 102nd Road, Queens, New York.

31. When the police officers arrived at plaintiff’s home, they had no objective factual basis to believe plaintiff threatened or injured the landlord in any way and based upon prior experience with the landlord, combined with plaintiff’s 911 call, they had every reason to credit and believe plaintiff’s complaint that she felt threatened by Sofia Ahmed’s text messages and irrational behavior.

32. Upon information and belief, at no point in the time prior to the police officers arrival at 81-17 102nd Road on December 13, 2013, did Sofia Ahmed call the NYPD or any other entity to make a complaint about plaintiff Kimberly Gordon.

33. Plaintiff approached the defendant police officers outside of the building and explained to the officers why she felt threatened by the text messages she received from the landlord. Further, plaintiff showed the officers the text messages and explained to the defendant police officers why the landlord’s behavior was threatening and caused plaintiff to fear for her safety.

34. One of the defendant police officers acknowledged to plaintiff that she and the other officers who responded to plaintiff’s 911 call had dealt with the landlord many times previously and knew the landlord was “crazy,” and not credible.

35. At no time did plaintiff verbally or physically assault or batter the landlord in any way.

36. The individually named police officer defendants interacted with Sofia Ahmed and observed that she was behaving in an irrational manner. Moreover, the officers did not observe any bodily injuries to the landlord.

37. Upon learning that plaintiff called the police to complain about the landlord's behavior, the landlord retaliated against plaintiff for making the complaint with the police and fabricated false allegations to the police that plaintiff possessed a knife on her person and threatened her with it.

38. Although the landlord's retaliatory complaint against plaintiff was clearly fabricated, the defendant police officer verified that it was false by searching plaintiff for the knife she was accused by the landlord of possessing and the officers confirmed that the landlord's complaint against plaintiff was false when they determined that plaintiff did not possess a knife.

39. Nevertheless, on December 13, 2013, at approximately 10:00 a.m., the individually named police officer proceeded to unlawfully handcuff and falsely arrest plaintiff without probable cause or legal justification and advised plaintiff that she would not be prosecuted because they would tell the prosecutors that the landlord got her falsely arrested.

40. The defendant police officers knew that plaintiff was the victim of harassment by her landlord and had no objective basis to believe plaintiff harassed the landlord in any way.

41. In fact, upon information and belief, the defendant police officers read the threatening and racially charged text messages and knew that Ms. Ahmed's allegations were not credible.

42. The defendant police officers falsely arrested and unlawfully seized plaintiff and forcefully transported plaintiff to the 102nd precinct and placed her in a holding cell.

43. At no time were any illegal drugs, weapons, or contraband recovered from plaintiff's possession, custody, or control.

44. Plaintiff was forced to be fingerprinted and photographed against her will and in violation of her liberty interests at the 102nd precinct.

45. Instead of placing plaintiff in a holding cell, the defendants handcuffed her to a bar of a cell door and forced plaintiff to remain outside the cell, handcuffed to the bar, for several hours.

46. Defendants did not provide plaintiff with any food or drink while she was detained at the 102nd precinct.

47. Plaintiff began to feel ill while she was detained at the 102nd precinct and she vomited in a garbage can while she was handcuffed to the cell door.

48. Plaintiff was then transported to Queens Central Booking approximately at approximately 4:30 p.m. on December 13, 2013.

49. Plaintiff was unlawfully detained in an overcrowded and filthy holding cell for several hours with individuals who were arrested for serious crimes.

50. On December 13, 2013, at approximately 7:30 p.m., plaintiff was arraigned before a judge in Queens Criminal court, and unlawfully charged with Harassment in the Second Degree and Menacing in the Second Degree.

51. The defendant police officers failed to forward exculpatory information to the District Attorney's Office, namely the text messages that Ms. Ahmed had sent to plaintiff immediately prior to plaintiff's arrest.

52. Plaintiff was released on her own recognizance at arraignment.

53. All criminal charges brought against plaintiff were dismissed and sealed on November 6, 2014.

54. As a result of her false arrest and false imprisonment, plaintiff suffered severe psychological injuries.

55. At no point during their encounter with plaintiff did the defendant police officers have probable cause or legal justification to arrest plaintiff for any crime.

56. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the false imprisonment and false arrest of plaintiff.

57. The false arrest and false imprisonment of plaintiff by the individually named defendant police officers caused her to sustain severe psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and

maliciously prosecuted, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Denial of Right to Fair Trial

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein

68. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

69. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

70. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

71. In withholding/creating false evidence against plaintiff Erica Miranda, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

72. As a result of the foregoing, plaintiff Erica Miranda, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. Defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

80. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

84. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Kimberly Gordon demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 13, 2016

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 13, 2016

_____/s/_____
STUART E. JACOBS